

25STCV23639 25STCV23639

County: los-angeles

Division: Civil Law and Motion

Department: 309

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Case Number: 25STCV23639 Hearing Date: August 25, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

JOE SCHUERGER, et al.

vs.

THE COUNTY OF LOS ANGELES, et al.

Case

No.: 25STCV23639

Hearing Date: August 25, 2026

Plaintiffs'

motion to discover peace officer records is GRANTED. The Court declines to award sanctions at this time.

On

8/12/2025, Plaintiffs Joy Schuerger and Amber Bissell (collectively, Plaintiffs) filed suit against County of Los Angeles and Los Angeles County Sheriff's Department, alleging: (1) sex discrimination; (2) harassment; (3)

retaliation; (4) failure to prevent; and (5) violation of POBR.

On

4/7/2026, Plaintiffs moved to discover peace officer records. Plaintiffs also seek \$19,690.00 in monetary sanctions.

Discussion

Plaintiffs

seek an order compelling Defendant to produce documents corresponding to Plaintiff's Demand for Inspection.

At the

6/3/2026 hearing, the Court directed Plaintiff to file supplemental briefing identifying specific document requests for their Pitchess motion.

In that

supplemental briefing, Plaintiffs identified categories 4, 11–12, 16, 26–28, and 29–40, and asserted that many of these materials are not confidential peace officer personnel records. Plaintiffs' categories include pre-employment background/reference materials (Category 4), any disciplinary records (Category 11), CRD/DFEH communications (Category 12), internal conversations regarding job performance (Category 16), investigations of Plaintiffs' complaints (Categories 26–28), and a range of email and text requests directed to multiple supervisors and the Department from July 2023 to the present (Categories 29–40).

Penal Code

section 832.8 does not make confidential and protect from disclosure any and all information contained in a file maintained by the employing agency simply because some of the records in that file relate to one or more of the items specifically identified in Penal Code section 832.8. Rather, Penal Code section 832.8 protects only the types of information specifically enumerated:

To extend the

statute's protection to information not included within any of the enumerated categories merely because that information is contained in a file that also includes the type of confidential information specified in the statute would serve no legitimate purpose and would lead to arbitrary results. Therefore, we conclude that peace officer personnel records include only the types of

information enumerated in section 832.8.

After

review the Court rules as follows.

As

for Pre-Employment Background and Reference Materials (Category 4), Plaintiffs seek all background/reference records maintained by the Department before employment began. Penal Code section 832.8 does not provide that all documents in an officer's personnel file are confidential peace officer personnel records subject to Pitchess procedures. Penal Code section 832.8 protects only specifically enumerated categories of information: personal data, medical history, employee benefits, employee advancement/appraisal/discipline, complaints concerning events the officer participated in or perceived pertaining to performance of duties, and information constituting an unwarranted invasion of privacy. These requests do not fall within any of these categories, and thus are not subject to Pitchess.

As

for Discipline (Category 11), this request seeks all writings relating to any discipline of Plaintiffs during employment. Given that these requests fall within the scope of Pitchess, good cause must be provided. Plaintiffs have provided such cause. Plaintiffs seek only disciplinary actions against themselves during their employment - a temporally and substantively defined category directly tied to their claims of discriminatory treatment.

As

for Internal Conversations Regarding Job Performance (Category 16), this request seeks all writings of conversations among officers and command staff about job performance. Good cause exists for this request as well, as it speaks to discriminatory motive.

As

for Investigations of Plaintiffs' Complaints (Categories 26–28), Plaintiffs seek all writings relating to any investigation of their complaints of unfair treatment at any time. Again, the Court finds good cause as to this request.

As

for Emails and Text Messages (Categories 29–40), Plaintiffs' request all emails and texts "relating to" Plaintiffs, including all communications by multiple

named supervisors and the Department from July 2023 to present. Again, the Court finds good cause as to this request.

Based

on the foregoing, Plaintiffs' motion to discover peace officer records is granted. The Court finds inadequate evidence to conclude that Defendant's opposition was frivolous or an abuse of the discovery process, and thus declines to award sanctions at this time.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.